# ZONING COMPLIANCE LETTER

Brookside Kingsley Market Lofts | Des Moines, IA

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| **Subject** | Zoning verification for Brookside Kingsley Market Lofts |
| **Address** | 9626 Industrial Avenue, Des Moines, IA 41476 |
| **Date** | March 21, 2024 |
| **Zoning District** | 42-42 |

## Permitted Uses and Parking

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The property is zoned in accordance with the Des Moines Unified Development Ordinance and the current use is a legally permitted use. A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 13 spaces provided versus 13 spaces required by code. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

The property is zoned in accordance with the Des Moines Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

## Permitted Uses and Parking

The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. The property is zoned in accordance with the Des Moines Unified Development Ordinance and the current use is a legally permitted use. Parking is conforming with 8 spaces provided versus 8 spaces required by code. A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

A certificate of occupancy was issued on file for the existing improvements. Parking is conforming with 29 spaces provided versus 29 spaces required by code. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. The property is zoned in accordance with the Des Moines Unified Development Ordinance and the current use is a legally permitted use.

## Zoning Classification

The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. The property is zoned in accordance with the Des Moines Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 47 spaces provided versus 47 spaces required by code. A certificate of occupancy was issued on file for the existing improvements. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality.

The property is zoned in accordance with the Des Moines Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Parking is conforming with 9 spaces provided versus 9 spaces required by code.

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# Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Brookside Kingsley Market Lofts Owner LLC

By: Fatima Thompson Title: Authorized Signatory Date: 03/21/2024

_____

Pioneer Coffee Co.

By: David Schmidt Title: Authorized Signatory Date: 03/21/2024

## Exhibit A - Property

Brookside Kingsley Market Lofts, 9626 Industrial Avenue, Des Moines, IA 41476. Parcel containing approximately 30.19 acres, together with all improvements thereon.

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